

## CHAPTER 11

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# LOCATING SEQUENTIAL CONVEYANCES

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### 11.1 INTRODUCTION

In Chapters 11 and 12—Locating Simultaneously Created Boundaries, two contemporary conveyance systems are discussed separately. In theory, they could be discussed in a single chapter. But we chose to discuss the two systems, sequential and simultaneous, in separate chapters to encourage students to recognize their importance. Retracing surveyors need to know the distinctions between the two.

In a retracement, the surveyor is frequently confronted with problems of resolving conflicts of evidence discovered when required to place a deed description on the ground. Relying on previous decisions, courts have given surveyors guidance on the resolution of such problems. Three basic elements that have been identified are as follows:

1. An occupancy right that has ripened into a legal right extinguishes or becomes superior to all written title to occupied land.
2. As between private parties in a land dispute, a senior right is superior to a junior right.
3. Written intentions of the parties are paramount.

Because they seldom determine the validity of occupancy or property rights, surveyors are concerned primarily with elements 2 and 3. The intent of the parties in a conveyance is first determined from the writings and then by the order of the importance of the deed elements. Usually, a call for a prior survey controls; monuments control over direction, distance, or area; under some circumstances, distance controls over direction; and area is usually, though not always, the least important

element. Although these are common-law rules, specific state statutes may give a variant order of importance.

As can be determined from reading various court decisions, the applicable rules for survey or resurvey or retracement of conveyances are not simple, nor will they be found to be uniform from state to state.

Surveyors are often asked to determine the intent of the various parties. There is no correct answer. Any list may be altered to meet the requirements or the facts presented.

The following is a collection of decisions reflecting how various courts have determined and resolved the intent of parties. When locating a parcel from a written description, the surveyor will see that there are three general classes of surveys or resurveys or, more particularly, retracements: (1) locating metes and bounds descriptions where the parcels have been located in sequential order, (2) locating lots within subdivisions where the lots were created simultaneously, and (3) locating parcels that are predicated on sectionalized federal government lands. Each of these will be treated separately.

A surveyor will find metes and bounds surveys in all the states as well as the various territories. As will be seen with sequential surveys or conveyances, one will seldom apply proportionate measurements, but in a retracement of parcels created simultaneously, proportionate measurement may be the rule unless the contrary can be shown.

The following principles are discussed in this chapter:

- PRINCIPLE 1. Ambiguities in patents issued by a state are usually resolved in favor of the state.
- PRINCIPLE 2. Having knowledge of sequential principles is important to surveyors and attorneys in understanding the basics of title and boundaries. Applying these principles in a faulty manner may lead to confusion and unnecessary litigation if they are not readily understood.
- PRINCIPLE 3. As between private parties, a junior grant in conflict with a senior grant yields to the senior grant.
- PRINCIPLE 4. When establishing the boundaries of a property in accordance with a written deed, the boundaries must be established in accordance with the written terms of the deed. Parol evidence may not be taken to determine the terms of a deed but may be used only to explain ambiguous terms of a deed.
- PRINCIPLE 5. When a conveyance is reduced to writing, it is assumed to contain all the terms intended and is construed, if possible, to give effect to all the terms mentioned in the conveyance.
- PRINCIPLE 6. Where a property description calls for a plat or map and the parties acted with reference to the map, the plat or map becomes a part of the description as much as if it were expressly recited in the deed itself.

- PRINCIPLE 7. A call for an adjoiner is not always a correct criterion for determining senior rights. A title search back to the original formation of the conveyance is necessary for a correct solution.
- PRINCIPLE 8. Excepting senior rights of others and a valid unwritten right of possession, the intentions of the parties to a deed, as expressed by the writings, are the paramount considerations in determining the order of importance of conflicting title elements.
- PRINCIPLE 9. Title lines established by estoppel, agreement, prescription, or other unwritten means are local in character and cannot be used to establish lines of the written deed.
- PRINCIPLE 10. Where lines are actually located and marked on the ground as a consideration of the transaction and called for by the deed, the lines so marked show most clearly the intentions of the parties and are presumed paramount to other written considerations, senior rights, and clearly expressed contrary intentions being excepted.
- PRINCIPLE 11. Monuments called for in a deed, either directly or by a survey, or by reference to a plat that the parties relied on, are subordinate to senior rights, clearly stated contrary intentions, and original lines actually marked and surveyed, but are presumed superior to direction, distance, or area.
- PRINCIPLE 12. When there is a conflict between sequential title and sequential surveys, the title controls the surveys.
- PRINCIPLE 13. If a description of land contains an error or mistake, and if the error or mistake can be isolated, the error or mistake is placed where it occurs.
- PRINCIPLE 14. Bearing and distance are presumed superior to surface, and only where bearing and distance more clearly show the intent do they control other elements.
- PRINCIPLE 15. Except where area expressly states the intentions of the parties to a deed, area is presumed as subordinate to other considerations.
- PRINCIPLE 16. A grant or conveyance is to be interpreted in favor of the grantee except that a reservation in any grant, and every grant by a public officer or body, as such, to a private party, is to be interpreted in favor of the grantor.
- PRINCIPLE 17. Certain and definite statements will prevail, and erroneous or ambiguous terms may be rejected, but such rejections should be as few as possible.
- PRINCIPLE 18. Unless stated otherwise, a distance is measured in a straight line along the shortest measurable distance, usually horizontal.
- PRINCIPLE 19. When a curve factor is given as a whole number, the curve factor with the whole number was probably the controlling assumed figure originally and should remain as such. When radius, tangent, and degree of curve are all odd, a prorated adjustment between

fixed monuments is indicated. Government (city, county, and state) relocated curved street lines are not acceptable for lot location unless based on original curve stakes.

- PRINCIPLE 20. When two factors are in conflict and nothing else indicates which of the two is correct, the first stated is preferred.
- PRINCIPLE 21. When numbers are shown both as figures and spelled out as words, the words will control unless the contrary can be proved.
- PRINCIPLE 22. The scale unit of the map is implied to refer to all distances without a character mark on the map.
- PRINCIPLE 23. A particular intent will by presumption control a general one that is inconsistent with it.
- PRINCIPLE 24. Unless the contrary is stated, it is presumed that every bearing given in a present-day metes and bounds description refers to the same basis at the same point, and that the bearing of every line is constant throughout its length.
- PRINCIPLE 25. (a) Where the bearing of a known line is given in a metes and bounds description, the bearing as given is assumed to be correct; successive courses are surveyed relative to the given bearing, whether or not the given bearing is astronomically correct. (b) Where a land description refers to a map and no basis of bearing is stated, it is implied that the map bearings are to be used, and all bearings in the description are referred to the same basis. (c) Where no basis of bearing is given or implied by a call for a map, true or magnetic bearings are to be used, depending on the presumption in the particular state.
- PRINCIPLE 26. If an original line of a deed can be identified, and if it was described originally by a measured magnetic bearing, the difference between the original record bearing and the present measured magnetic bearing is the correction to apply to other record bearings of the same description.
- PRINCIPLE 27. If a line can be found in the vicinity whose magnetic bearing was determined reliably at the time of the deed, determine on that line the change in magnetic bearing from the date of the deed to the present time. Next, correct the bearings of the lines being surveyed by the amount of correction noted.
- PRINCIPLE 28. In the absence of a direct method of determining declination changes between given dates and reliable local data relative to declination changes from a given date, apply the magnetic declination corrections as given in National Geodetic Survey tables or website.

## 11.2 DEFINITION OF SEQUENTIAL CONVEYANCES

When a portion of a tract of land is sold, two or more parcels are created, a new parcel and the remainder of the parent parcel. Because the new parcel must receive

all the land described, it is called the *senior deed*, and the remainder, at the time of conveyance, becomes the *junior deed*. *Sequential conveyances* are those written deeds in which junior and senior rights exist between adjoining parcels. In general, sequential conveyances came into being because of a lapse of time between successive conveyance instruments. For example, the state of Virginia granted a patent for a parcel of land to Jones, and at a later date granted an adjoining patent to Smith. If there happens to be an overlap of Smith's parcel on Jones's parcel, the party first in time (Jones, the senior deed) receives all that is described in the patent, and the adjoiner or second conveyance in time (Smith, the junior deed) receives the remainder. If a gap exists, that portion, in theory, belongs to the state. In Texas, Virginia (including the Virginia Reserve in Ohio), Kentucky, and several other southern states, warrants were issued for an area of land. The person with a warrant went upon the land, selected the area that he or she desired, and had it surveyed, described, and platted, as required by law. The description usually included calls for monuments, trees, topographic features, measurements, and area. The person then applied for a patent, and if all the legal requirements were met, the patent could be granted. Since each parcel was created in sequence, usually as indicated by the date of the patent, these were sequential conveyances.

As expected, in states issuing indiscriminately located sequential patents, gaps, vacancies, and overlaps sometimes existed between parcels. For a period of time in Texas, such vacancies belonged to the first person applying for them, and in oil fields, vacancy hunters often became wealthy. Later, this law was changed and the schools became the beneficiary of vacancies. Each state now determines how or whether vacancies may be conveyed, and each surveyor must be acquainted with the laws of his or her state. Because of the numerous conflicts in deed rights, many states with sequential patents shortened the time necessary for occupancy rights to ripen into a fee right from the 20-year common law.

### 11.3 SIMULTANEOUS CONVEYANCES

When several parcels of land are created at the same moment in time, from the same source tract, such as lots in a subdivision, several parcels in a will, or sections in a township, all parcels have equal legal standing; they were all created at the moment of filing the subdivision map, at the moment of death of the testator, or, in the case of a U.S. township, at the time the plat was approved. Sequential rights (senior rights) to lots in a filed subdivision rarely exist. Usually, each party is entitled to his or her proportion of any excess or deficiency discovered. However, sequential rights may exist between separate subdivisions.

In a resurvey of a deed, if no significant error of closure exists and all -monuments fall in their measured positions, the resurvey merely amounts to replacing old monuments or setting new monuments at corners where none were set originally. However, when measurements between original monument positions do not agree with those called for in the conveyance or when there is a significant error of closure, correcting these discrepancies becomes a problem. The treatment of the discrepancy

varies depending on whether the conveyance is sequential or simultaneous. In this chapter, errors of measurements found in sequential conveyances are discussed.

## 11.4 POSSESSION

Any unwritten right or possession that ripens into a fee right extinguishes prior title rights. In such an event, all the rules for construing the order of importance of conflicting deed elements are meaningless; hence, an unwritten right ranks first in the order of importance of elements making up the “right of title and possession” or, in the language of the layperson, “ownership.” Normally, a surveyor does not decide who has unwritten possession rights; he or she merely notes the evidence of encroachments or adverse uses and evidence of other surveys. The final decision is a legal one to be made by the courts.

## 11.5 SEQUENTIAL PATENTS

**Principle 1.** *Ambiguities in patents issued by a state are usually resolved in favor of the state.*

In several states, some of the original land titles were derived from the state, and many of these states issued patents in a sequential manner. As a part of the patent procedure, a survey of the land parcel selected, a written description, and a plat were usually required. The question now arises: What are the junior and senior rights between the state and the person acquiring the patent?

Patents are quitclaim deeds. A state or governmental body gives no warranty. In the event of an ambiguity, the patent is to be construed in favor of the government, not in favor of the person who holds the patent or his or her successors. This is just the reverse of what is accepted as proper during a land sale between private parties. In *Creech v. Johnson*, the court ruled that “where the terms of a patent from the State are uncertain or doubtful, it is to be strictly construed against the grantee.”<sup>1</sup> In *Fordson Coal Co. v. Napier*, the court held that “construction most against party claiming under uncertain (patent) survey should be adopted in case of doubt in establishing boundaries.”<sup>2</sup>

## 11.6 IMPORTANCE OF KNOWLEDGE

**Principle 2.** *Having knowledge of sequential principles is important to surveyors and attorneys in understanding the basics of title and boundaries. Applying these principles in a faulty manner may lead to confusion and unnecessary litigation if they are not readily understood.*

Like any other profession in retracing completed surveys, there are certain basics that do not have to be identified. These principles are a result of standards that seem

so basic that they are imposed by unwritten dictates. An example would be “A doctor must wash his or her hands before treating a patient “or” Surgical instruments must be sterilized.”

This axiom also applies to surveyors. No surveyors should be reminded that they should calibrate their equipment. That should be a given.

In a 1987 Virginia decision, a dissatisfied landowner, through his attorney, filed a *negligence, per se* action against his retracing surveyor.<sup>3</sup> The defendant landowner challenged the decision from the Circuit Court of Albemarle County (Virginia), which, in a jury trial, entered judgment for the plaintiff surveyor in the surveyor’s suit to recover for the unpaid balance for a boundary survey. The landowner had the action removed from the district court, denied liability, and counterclaimed for damages arising from the surveyor’s alleged negligence.

The court reversed the decision after concluding the surveyor was negligent as a matter of law, and the circuit court erred in denying the landowner’s summary judgment motion on the issue of liability. The court entered final judgment for the landowner on the surveyor’s claim, entered judgment on the issue of liability in the landowner’s favor as to the landowner’s counterclaim, and remanded for trial on the issue of damages on the counterclaim.

Land surveyors, like other professionals, are governed by certain standards, which have ripened into rules of law. In the absence of evidence of contrary intent, a distinct order of preference governs inconsistencies in the description of land: (1) natural monuments or landmarks; (2) artificial monuments and established lines, marked or surveyed; (3) adjacent boundaries or lines of adjoining tracts; (4) calls for courses and distances; (5) designation of quantity.

## 11.7 JUNIOR AND SENIOR RIGHTS BETWEEN PRIVATE PARTIES

**Principle 3.** *As between private parties, a junior grant in conflict with a senior grant yields to the senior grant.*

“First in deed and last in will” is the often-quoted principle. One who conveys an interest in land to one person cannot at a later date sell the same intentionally to another. For every title policy, abstract, or boundary location of a junior deed, the title examiner or surveyor should research and investigate the rights of the senior deed. The availability and quality of records to prove seniority of deeds vary considerably throughout the United States. In states in which title insurance policies are issued on land, the problem is simplified because the facts of seniority are usually disclosed by the title policy. The surveyor who is locating land from a title policy description need not devote research time to title matters other than those described or called for by the policy. The title company assumes responsibility for the correctness of the title as written. The surveyor’s only responsibility is the interpretation of the description, not the title.

In the absence of a reliable abstract company, the facts of seniority are sometimes difficult to determine, and in some localities deed records are meager. In

some southern counties, in Massachusetts, in Chicago, and in many rural areas, fires destroyed most of the records. As early as 1872 in Vermont, the court held: “The line in dispute has two descriptions in the deed; one, its course North 34 degrees West, and the other, on said Morgan’s line and Simon Colgon’s north line. As between courses and distances on the one side, and abutments on the other, in case of disagreement, abutments, when identified, must, as a general rule, control.”<sup>4</sup>

## 11.8 DEEDS MUST BE IN WRITING AND DEEMED TO BE WHOLE

**Principle 4.** *When establishing the boundaries of a property in accordance with a written deed, the boundaries must be established in accordance with the written terms of the deed. Parol evidence may not be taken to determine the terms of a deed but may be used only to explain ambiguous terms of a deed.*

*Parol testimony* is oral testimony. To allow an owner to express an opinion as to what the terms of a deed were is equivalent to permitting land to be transferred by parol means. Explanations of deed terms are sometimes necessary and proper, as in the following deed: “Beginning at the southwest corner of Love’s intersection; thence, etc.” An oral explanation that a Mr. Love formerly lived at the intersection of the present Tavern and South Grade Roads and that the intersection was then known as Love’s Intersection is proper, but to dispute the fact that the point of beginning was at Love’s intersection is improper. Only the physical location of Love’s intersection may be explained.

Words may not be added to or subtracted from a deed, nor may they be varied. The person who drew up the deed would not be permitted to claim that additional land was to be included in the deed. A deed that is applicable to either of two properties is void and may not be identified by verbal means. An existing word may be explained. “My house and lot” is a valid deed if it can be explained that “my house” can apply to only one house, but such a deed is void if verbal explanation is necessary to distinguish between two houses that might be “my house.” In other words, the addition of a term to differentiate between the two houses is not permitted. Any deed may be void or voidable if the description does not describe a property.

Parol evidence may be resorted to for the purpose of applying the description contained in writing to a definite piece of property and to ascertain its location on the ground, but never for the purpose of supplying deficiencies in a description otherwise so incomplete as not to definitely describe any land. The description must itself be capable of application to something definite before parol testimony can be admitted to identify any property as the thing described.<sup>5</sup> When the parties to an agreement reduce the terms to writing, the agreement is to be considered as containing all those terms, and therefore there can be, between the parties and their representatives, no evidence of the terms of the agreement other than the contents of the writing. This does not exclude other evidence of the circumstances under which the agreement was made to explain an extrinsic ambiguity or to establish illegality or fraud. For proper construction of an instrument, the circumstances under which it

was made, including the situation of the subject of the instrument and of the parties to it, may also be shown, so that the judge may be placed in the position of those whose language he or she is to interpret.

### Limitations on the Principle

Although in all states deeds must be in writing to be valid or enforceable at law, there are exceptions in a few states as to the necessity that all the terms of the deed have gone upon the land and made a physical survey of the same, giving it a boundary that is actually run and marked, and the deed is thereupon made, intending to convey the land that they have surveyed, such land will pass, although a different and erroneous description may appear on the face of the deed.<sup>6</sup> It was further observed: "This is regarded as an exception to the rule, otherwise universally prevailing, that in the case of written deeds the land must pass according to the written description as it appears in the instrument."

## 11.9 DIRECTION OF THE SURVEY

In surveying a lot within a subdivision, any corner identified and found as being original has equal standing as a starting point. If four corners of a block are found, each corner has an influence on the location of a lot within the block, and no definite direction of survey is called for. Most metes and bounds surveys are written so that the deed proceeds in a definite direction from one point of beginning and returns to the same point of beginning.

## 11.10 TERMS OF THE DEED

**Principle 5.** *When a conveyance is reduced to writing, it is assumed to contain all the terms intended and is construed, if possible, to give effect to all the terms mentioned in the conveyance.*

To be valid, deeds must be in writing; to permit the addition of terms to a deed or the omission of terms from a deed would defeat the purpose of requiring a deed to be in writing. California, one of the later states admitted to the Union, enacted many of the common laws of older states into statute laws, as in the following example:

In the construction of an instrument, the office of the judge is simply to ascertain and declare what is in terms or in substance contained therein, not to insert what has been omitted, or to omit what has been inserted; and where there are several provisions or particulars, such a construction is, if possible, to be adopted as will give effect to all.<sup>7</sup>

When working with any interest in real property, the law requires that in order to be able to prove or have a cause of action the complainants must have a document proving their action. As an example, one must have a deed to prove title or

any “arrow” within the bundle of rights. The extent of land ownership one is able to claim is that defined in their title deed.

## 11.11 CALL FOR A PLAT

**Principle 6.** *Where a property description calls for a plat or map and the parties acted with reference to the map, the plat or map becomes a part of the description as much as if it were expressly recited in the deed itself.*

Whenever a map or plat is called for, the monuments, distances, bearing, and data of the plat become part of the description: “According to Map 1205,” “as shown on Record of Survey No. 1272,” “as shown on the plan of lot 6 in range the 3rd in Boston Narragansett Town No. 5, being second division,” “as shown on Map of survey No. 12566, Virginia Military District, Ohio,” or “according to Road Survey No. 1020” are phrases that include a map or plat as part of a deed. It makes no difference whether the map was legally recorded or not, provided that the map or plat was referred to and is identifiable as the exact one referred to. A call for an adjoiner may include any call for a map or plat not mentioned in the deed; thus, “to Smith’s west line” may include any plat called for in Smith’s deed, which determines Smith’s west line. In *Ferris v. Coover*,<sup>8</sup> the court stated that a map, referred to in a grant for the purpose of identifying the land, is to be regarded as a part of the grant itself, as much as if incorporated into it.

### Limitations on the Principle

The importance of a plat is dependent on whether the parties acted with reference to the map and also on the data given on the plat. If there is a clear error in the call for a map or it is apparent that the parties did not act with reference to the map cited, the map will be treated as surplusage. When there is a call for a plat, it is presumed that the parties did act with reference to the plat; the contrary must be proved, not surmised. The data on the map determine its importance. If the plat shows an accurate survey with calls for monuments, much greater control is afforded the map than would be given to a picture drawing with little or no information on it.

## 11.12 INFORMATIVE AND CONTROLLING TERMS

An *informative term* in a deed is considered a “modifier” and is one that adds information about the terms of the deed, but if the informative term is in conflict with the term that it modifies, this term yields. Informative terms act as aids to distinguish the *controlling term* in a manner similar to adjectives that assist in distinguishing like objects or nouns from one another.

“A house,” “a red house,” and “a red house with a green roof” may all refer to the same house, but in the last-described house there is more certainty of its being located correctly because of the additional descriptive terms. “Beginning at the

southeast corner of lot 2; thence N 12°10' E, 200.00 feet to a concrete monument" contains two informative terms, "N 12°10' E" and "200.00 feet," and a controlling term, "a concrete monument." The "N 12°10' E, 200.00 feet" as given here is an aid to distinguish the concrete monument from similar monuments and even conflicting monuments, but the added terms should act as a modifier of the term "a concrete monument." In a deed in which the controlling term cannot be distinguished or located, the informative term may then become the controlling term, as in the foregoing, "N 12°10' E, 200.000 feet" could become exact if the monument were lost.

In determining the title interest of a client, conflict may occur between the written instrument, the subdivision map, and the measurements on the ground, or within the written instrument itself. When a conflict occurs, the surveyor or attorney should be able to recognize the deed term that is controlling and the one that is informational but not controlling. Which conflicting term should be followed is discussed in the normal order of importance.

## **ORDER OF IMPORTANCE OF CONFLICTING TITLE ELEMENTS**

### **11.13 GENERAL COMMENTS**

Surveyors prefer to work with and are comfortable with mathematical equations because equations give a positive and presumably correct and comfortable answer for a set of facts. In listing the order of importance of title elements, the list cannot be compared with a mathematical formula; the order of importance must have flexibility to fit solutions most nearly deemed to be correct by the court. The following outline of an order of importance of conflicting deed elements, which is often quoted, is seldom understood and has many exceptions.

The retracing surveyor should understand and become comfortable with relying less on measurements and more on evidence when it comes to a question of boundary location. In recent years, the various government agencies as well as the courts have made possible a greater latitude for accepting "minimum" corner evidence. From the 1930s until 2009, the distinction of a lost corner and an obliterated corner, so far as degree of proof was concerned, was the difference between "beyond a reasonable doubt" and creditable. The U.S. *BLM Manual*, required the higher degree of proof "beyond a reasonable doubt," the degree of proof usually reserved for criminal convictions. With the most recent edition of 2009, the BLM changed the degree of proof to "credible" equal to or probably lower than the usual "preponderance of evidence." Several courts have written that they would prefer a corner based on lesser degree of evidence than on measurements.

### **Order of Importance of Conflicting Elements That Determine Land and Boundary Location**

- A. Right of possession (unwritten conveyance)
- B. Senior right (in the event of an overlap)

### C. Written intentions of parties

1. Call for a survey or an actual survey on which the conveyance is based
2. Call for monuments
  - a. Natural
  - b. Artificial
3. Call for adjoiningers
4. Call for direction and distance
5. Call for direction or distance
6. Call for area (quantity)

Right of possession should never be mentioned in a conveyance. Senior rights may or may not be apparent from the wording of a conveyance. The importance of all other items within a conveyance must be interpreted in light of the intentions of the parties as of the time of the conveyance. The following discussion is mainly an explanation of what the courts, in the event of conflicting elements, have declared expressed the intent of the parties.

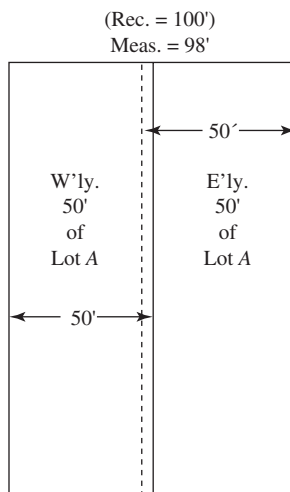
Although surveyors should be knowledgeable about category A, they should only report the facts and not advise clients on legal conclusions.

The order of importance of conflicting deed elements listed here, while generally true, can vary from state to state, and within the same jurisdiction it can vary under different circumstances. In most states, both distance and direction are subordinate to monuments or adjoiningers, but when it becomes necessary to choose whether direction or distance is the controlling consideration, variable and conflicting court opinions exist. For example, in the sectionalized land system of the United States, the Bureau of Land Management was given the authority to establish rules and regulations to put the system into operation. In the BLM methods used to relocate lost corners, distance during the application of proportionate measurement becomes controlling over direction, and this has been accepted by most courts. However, in the interpretation of metes and bounds descriptions, federal courts and many state courts have declared that direction is superior when the two are in conflict. In California and Colorado, a statute lists distance as preferred to direction. Thus, to conduct a proper retracement, surveyors must know the state statutes and when, how, and why the courts have reacted to different situations within their state or states of practice.

It should always be kept in mind that while the order of conflicting elements may serve to resolve differences between calls, for a variety of reasons, strictly speaking, the order of conflicting elements applies to the resolution of ambiguities within a written description. This set of rules is not intended to resolve all conflicts or conflicts between written evidence and physical evidence. For instance, called for, found, and proven monuments may control a course or a distance for a variety of reasons, but this rule applies only when both are recited in the same description and are in conflict with each other.

### 11.14 SENIOR RIGHTS

Where two parties are given title to the same parcel of land, and where possession is not a consideration, the party with senior rights has the right of possession according to common law. Patrick L. Brown purchased land from Ashley Bishop on March 16, 1950, and his title reads: "The westerly 50 feet of lot A." Willard Woods purchased land from Ashley Bishop on March 17, 1950, and his deed reads: "The easterly 50 feet of lot A." Because of the earlier time, Patrick Brown is said to be senior, and he receives all of the land coming to him, as shown in Figure 11.1. Willard Woods could not buy more than Ashley Bishop's remainder and is junior in character. The overlap in Figure 11.1 in title belongs to Brown, and if there is no possession, Brown has the right of possession. If, however, Woods had possession up to his title line for a prolonged period of time as required by law, his possession might give him the right to go to court and obtain title to the overlap. Whether senior rights are investigated by the surveyor or not depends on the custom within the state and the terms of the contract under which the surveyor is working. In many states, especially in the West, title companies issue title policies with senior considerations stated in the description furnished. In such states, it is advisable for surveyors to work with title policies and deeds. In some states, little or no title information is available, and it is extremely difficult to trace senior rights. An abstract and attorney's title opinion is common in the Midwest, and in these areas opinions and abstracts are used by surveyors. In many of the East Coast states, where grants were made in sequence by the state, it may become necessary for the surveyor to determine the dates of entry and/or survey to understand junior and senior rights.



**Figure 11.1** Senior rights and overlaps.

## 11.15 CALL FOR AN ADJOINER

**Principle 7.** *A call for an adjoiner is not always a correct criterion for determining senior rights. A title search back to the original formation of the conveyance is necessary for a correct solution.*

A call for an adjoiner (bounded by Jones on the east: to the line of Smith as described in Book 1021, page, etc.) may be a call for a senior right, but not always. For example, Richard Johnston's deed reads in part: "Bounded on the south by the land of Stanley Burne as described in volume 7, book of deeds, page 42, etc." Stanley Burne's deed reads in part: "thence N. 0°27'00" E., 301.27 feet to the southerly line of Richard Johnston's land as described in . . . etc." Each calls for the other. In such an event, an extensive title search is necessary to determine who has prior rights. They do exist! The cause of such ambiguity is usually a subsequent change of the words or the form of a description after the first conveyance. Later owners cannot legally obtain more than was described in the original document, except by the process of lawful prolonged possession, which ripens into a title right.

## 11.16 WRITTEN INTENTIONS OF THE PARTIES TO THE DEED

**Principle 8.** *Excepting senior rights of others and a valid unwritten right of possession, the intentions of the parties to a deed, as expressed by the writings, are the paramount considerations in determining the order of importance of conflicting title elements.*

The primary and fundamental principle to which all others relate and must yield is that the intentions of the parties gathered from the whole instrument, taken in connection with the surrounding circumstances, must control.<sup>9</sup> A deed should be construed according to the intentions of the parties, as manifested by the whole instrument.<sup>10</sup> Principles given to determine the order of importance of conflicting elements are not conclusive but are principles of evidence or principles of construction adaptable to surrounding circumstances. A call that would defeat the parties' intentions is rejected regardless of its comparative dignity.<sup>11</sup>

The following principles of construction, given to determine the control between conflicting elements within a deed, are rebuttable presumptions subordinate to the preceding principle. Like all principles based on rebuttable presumptions, when the contrary is shown, the presumption is overcome and the principle does not apply. In court decisions involving land boundary disputes, the written intentions of the parties who were a part of the original transaction are the paramount considerations; the written intentions control all other points. When land is first conveyed, the transfer cannot be by parol means; only properly written and signed documents in accordance with the laws of the state can be used. To determine the intent of an instrument from the parties of the transaction by oral statements is tantamount to permitting transfer of titles by parol means. This is a violation of the statute of frauds.

The intent must be determined from the written instrument itself, not from the mistaken ideas of one of the parties. Where a party believes that he or she has a right to a disputed parcel of land and that right is not based on a written deed, only a court or a true title owner can transfer paper title. In such cases, the surveyor should advise the client to seek legal advice.

If two elements in a deed are in conflict, before a proper location can be made, it becomes necessary to decide which one was intended and which one was informational. A deed written “N 20°E a distance of 310 feet to Boulder Creek” presents a conflict because Boulder Creek is 410 feet away. What was intended? Here, the court rule is that the natural monument, the creek, more clearly shows the intent than does the informative term “310 feet.” An additional problem is whether the line goes to the side line of the creek or to the thread or center of the creek. In this case, it would be improper to ask the buyer or seller what the intentions were; the document as signed is the best evidence of intent. In most states, if the stream is navigable, the line terminates at the side of the creek; if it is not navigable, the line ends at the thread or center of the creek. This principle is applicable in every state in one form or another.

To determine the intent of a deed, sometimes an explanation of the terms of a deed or an understanding of the surrounding circumstances existing when the deed was written is necessary. Thus, a deed beginning “at a well-known sycamore tree in Alpine” must be investigated and parol evidence taken to explain where the tree is. A deed stating “starting at a blazed pine tree; thence running a line through a second blazed pine tree to the Cuyamaca Park line” is indefinite without extrinsic evidence. Here, terms are not being added to or subtracted from a deed; an explanation of the terms existing in the deed is being sought for clarification or meaning. Nowhere is a statement made that any particular element written in a deed is controlling; the element most effectually expressing the intent of the parties is to be adopted. As early as 1858, it was stated:

The rules adopted in the construction of boundaries are those which will best enable the courts to ascertain the intentions of the parties. Preference is given to monuments, because they are least liable to mistake; and the degree of importance given to natural or artificial monuments, course and distances, is just in proportion to the liability of the parties to err in reference to them. But they do not occupy an inflexible position in regards to each other. It may sometimes happen, in case of a clear mistake, that an inferior means of location will control a higher.<sup>12</sup>

The intentions of the parties to the deed must be gathered from all the terms of the deed, each term taken in the light of all other terms. A call for a monument, although normally controlling, may be rejected where all the other terms in the deed indicate that the call for the monument was inserted in error.

### **Exception to the Principles of Intent**

The intentions of parties to a conveyance can never overcome the rights of a senior claimant who is not a part of the conveyance proceedings or litigation. Thus, a call in a deed for “2172 feet to Hyde Road” cannot go to the road if the seller did not in

fact own to the road. Considerations in the senior deed (adjoiner) may limit the call for Hyde Road (a record monument) to a line determined by items of lesser standing, such as measurements or area. The principle of intent is applicable only to the parties of the conveyance.

### 11.17 AIDS TO INTERPRET THE INTENT OF A DEED

The following maxims of jurisprudence are frequently quoted in cases involving land disputes:

1. When the reason for the principle ceases, so should the principle itself.
2. Where the reason is the same, the principle should be the same.
3. One who grants a thing is presumed to grant also whatever is essential to its use and enjoyment.
4. Between rights otherwise equal, the earliest is preferred.
5. Particular expressions qualify those that are general.
6. An interpretation that gives effect is preferred to one that is made void.

### General Acceptation of Terms

The terms of a writing are presumed to have been used in their primary and general acceptance, but a local, technical, or otherwise peculiar signification may be shown to be the intent, in which case the agreement must be construed accordingly. The terms represent the meanings at the time of the writing.

### Least Likely Mistake

If a deed contains conflicting description elements, that description element is to be adopted which is the least likely to be affected by mistakes.<sup>13</sup> If the conflict is significant, the deed may be either totally void or voidable.

### Date of Execution

Unless there is something in the instrument to the contrary, a conveyance referring to natural objects and boundaries speaks as of the date of its execution or as the date of a survey, if a survey is called for.

### 11.18 CONTROL OF UNWRITTEN TITLE LINES

**Principle 9.** *Title lines established by estoppel, agreement, prescription, or other unwritten means are local in character and cannot be used to establish lines of the written deed.*

Any boundary line determined by unwritten means can only be considered local in time and character. An agreement with a neighbor to fix a disputed unknown line cannot be used as a basis to establish lines of a previously written deed. In other words, unwritten title lines stand alone, since they are established on an individual basis. They cannot be used to locate or control other lines of title or boundaries.

## 11.19 LINES MARKED AND SURVEYED

**Principle 10.** *Where lines are actually located and marked on the ground as a consideration of the transaction and called for by the deed, the lines so marked show most clearly the intentions of the parties and are presumed paramount to other written considerations, senior rights, and clearly expressed contrary intentions being excepted.*

### Limitations on the Principle

The lines marked and surveyed have force only where (1) the lines run were considered as the lines of the transaction, (2) the lines can be identified, (3) the lines run do not encroach on a senior right, (4) the lines run are not for the purpose of meandering a body of water, and (5) in most states the lines run are called for in the deed.

Proof that a survey was intended as a part of the transaction may be determined from a statement in the deed itself or from a law. In some states, such as Kentucky, Virginia, and Texas, and for federal lands, a general law required a survey prior to issuance of a patent. As a matter of law, it would be presumed that a survey was made for such patents unless the contrary could be shown.

If an owner incurs the expense of a survey and then describes lands in accordance with the lines laid out, it can only be presumed that he or she intended to convey to the lines delineated upon the ground and not to erroneous informative calls for bearings and distances. Measurements taken upon the ground are aids to locate where the lines are if lost, but the lines themselves, when identified upon the ground, represent the original lines intended for the conveyance and are controlling for that conveyance survey.

All the rules of law that have been adopted for guidance in locating disputed boundary lines have been to the end that, in so doing, the steps of the surveyor who originally created the lines on the ground may be retraced as nearly as possible.<sup>14</sup> If a deed describes the land conveyed by courses and monuments and boundary lines of other tracts, and then declares that the description given is to be according to a survey theretofore made by a person named, such survey is incorporated into the deed and becomes a part of it, and the grantee acquires title only to the land contained within the exterior boundaries of the survey.<sup>15</sup>

Numerous other cases can be cited in which the principle of acceptance of the original survey is paramount to boundaries, distances, angle, or area. A call for monuments in a metes and bounds description does not necessarily prove that a survey has been made. Metes and bounds descriptions that contain calls for monuments may have been written without a survey.

Proof of the original survey is usually embodied in the location of the original monuments set to mark the original survey. If, in identifying the lines as run by the original surveyor, there is a discrepancy in course and distance over monuments, the evidence of the actual original location must be by a preponderance of the evidence. Preliminary or conditional lines are not binding.

Where a surveyor runs lines to meander a body of water or stream, the lines run are not considered lines of the conveyance; they are considered lines to aid in the plotting of the feature itself. The boundary of the meandered monument itself is the true line.

Of course, if a survey is called for in a conveyance and it is shown that the survey was not made or was incomplete, the rule for the control of an original survey does not apply. In *Swift Coal and Timber Co. v. Sturgill*,<sup>16</sup> it was proved that the surveyor ran the first three courses only and protracted the remainder. Although the first three courses called for the top of a ridge, the monuments set were on the side of a ridge. The next courses called for a second ridge and gave bearings and distances. If the top of the second ridge had been adopted, the area would be 17,000 acres instead of 12,000, as called for. Because the top of the ridge could not be followed in the three courses surveyed, the court reasoned that the call for the second ridge did not mean the top of the ridge, and the bearings and distances were adopted. Although the court did not say so, it should be remembered that the original patent came from the state of Kentucky, and, in case of doubt, patents issued by a state are construed against the grantee.

In Kentucky, where an original survey and plat were required for a patent, the question of the performance of the original survey was questioned. The court observed:

It is true the rule is that the calls of a patent for course and distance must give way to known or established objects found on the ground. But after all, the rules that have been laid down on this subject are for the purpose of establishing the actual location of the lines and corners of the original survey, and they have little application where the lines were not run out in the original survey, but were simply laid down by the surveyor by protraction as was evidently the case in the patent before us. When the lines were not in fact run, we have little to guide us except the calls of the patent and the plot of the land accompanying the original survey. The plot accompanying the original survey is potent evidence in the determination of the general shape of the tract of land intended to be patented. To follow the lines of the other surveys in the case before us on the east to John Murphy's survey on the west to King's survey, and then on around with still other surveys would be to make this tract include five times as much land as the grantee paid for and give the tract an entirely different shape from that which was evidently contemplated in the grant.<sup>17</sup>

Note again that in a Kentucky patent an uncertainty is to be construed against the patentee, not the state. In *Givens v. United States Trust Co.*,<sup>18</sup> course and distance were given control over calls for adjoiners, wherein, if the adjoiner lines were followed, it would have increased the area 10 times over that stated in the patent. These decisions are understandable in that the courts did not rely upon a single element but considered all elements collectively or in their totality.

Where there is a conveyance of land from one private person to another, the call for adjoiners usually controls course and distance, even though a large excess of area is conveyed over that stated in the deed. An ambiguity in a patent from the state is resolved in favor of the grantor (the state), whereas an ambiguity in a conveyance between private parties is construed against the grantor (seller).

## 11.20 CORNER DEFINITIONS

The following terms are frequently used to identify the status of a corner.

A *corner* is a point of change of direction of the boundary of real property. It may be marked by a monument, fence, or other physical object, or it may not be marked at all. A call for a point is assumed to be a call for a corner, but the call for a course without the call for a point is not necessarily assumed to be a call for a corner.

An *existent corner* is one whose position can be identified (1) by an existing original monument or (2) by accessories acceptable to the original monument position.

An *obliterated corner* is one at whose point there are no remaining traces of the original monument, replacement monument, or its accessories, but whose location may be recovered (1) by competent testimony, (2) by some acceptable record evidence, (3) by improvements built at the time the original position was known, or (4) by a monument proven to be a replacement of an original monument.

A *lost corner* is a point of a survey whose position cannot be determined by the original monument or by acceptable evidence as to where the original monument was, even though a monument may be present.

An *accessory to a corner monument* is any bearing object, bearing tree, pit, or object recited in the original field notes as having a definite relationship to the corner. An accessory assumes the same dignity as the original monument if called for in the writings. A proven original corner and an accepted obliterated corner enjoy the same legal standing.

A *memorial* is any durable article deposited alongside, near or beneath the monument that will serve to identify the corner location in case the monument is destroyed. Metal, charcoal, glass, stoneware, and marked stones were common memorials in the sectionalized land system.

## 11.21 CONTROL OF MONUMENTS

**Principle 11.** *Monuments called for in a deed, either directly or by a survey, or by reference to a plat that the parties relied on, are subordinate to senior rights, clearly stated contrary intentions, and original lines actually marked and surveyed, but are presumed superior to direction, distance, or area.*

The surveyor must determine whether the monuments called for in the deed were in place at the time the deed was conveyed. The biblical importance of monuments was recognized in Deuteronomy: “Thou shalt not remove thy neighbor’s landmark,

which they in old times have set” (Deut. 19:14) and “Cursed be he that removeth his neighbor’s landmark” (Deut. 27:17). “Where parties agree upon definite monuments that fix the boundaries of a parcel of land conveyed by one to the other, such monument should unquestionably control.”<sup>19</sup>

Whenever an original survey is made, the surveyor either finds a monument in place or sets a monument. The distance and direction measured between the monuments is dependent on the skill and accuracy of, which is dependent on the equipment used by, the surveyors doing the measuring; if an error occurs, the error is due to the inability of humans to measure properly or to copying errors. The monuments are fixed in position and, if found undisturbed, are not in error. In deeds written without benefit of survey and including calls for monuments, the presumption is that the parties intended to go to the monuments; otherwise, the calls would not have been inserted. Because an original monument is considered as being more certain in fixing the location of a line or corner, it is given preference over distance, direction, or area. An uncalled-for monument cannot be considered controlling when in conflict with superior elements: In describing the boundaries of the land granted, “Monument[s] mentioned in a deed control both the courses and distances given in the deed, if there is a conflict, without regard to whether, in fact, the monuments were seen by the parties to the deed or not.”<sup>20</sup>

Because odd or confusing language is sometimes used to express a finding, the entire report of a court case should be read or a wrong impression can be formed. For example, one court’s opinion was: “It is a long since settled principle of construction in respect to location, that metes and bounds in the description of the premises granted control courses, distances, and quantities, when there is any inconsistency or conflict between them.”<sup>21</sup> Apparently, the court erroneously used “metes and bounds” to mean monuments, as further reading of the case indicates that the dispute was about the location of a hickory tree. A surveyor should never quote findings in any case without reading the entire case first. When quoting a case, it is imperative that the surveyor compare the facts in each case with those in hand.

In deciding whether an iron pipe represented the “stake” referred to in a deed, the lower court found that the burden of proof was not met and rejected the iron pipe. On appeal, the upper court cited the general reputation of the pipe and prior acceptance by prior grantors, and concluded that the burden of proof had been met. In commenting on monuments, the judge said:

A monument, when used in describing land, can be defined as any physical object on the ground which helps to establish the location of the line called for. It may be either natural or artificial and may be a tree, stone, stake, pipe or the like. Just as in contracts and wills the intentions of the parties governs the interpretation of deeds. It is for that reason that monuments named in deeds are given precedence over courses and distances, because the parties can see the tree, stone, stake, pipe or whatever it may be, which is referred to in the deed, but would require equipment and expert assistance to find a course and distance.<sup>22</sup>

Many surveyors are guilty of using nonspecific terms such as stakes, posts, staffs, or IPs (probably meaning “iron pipe” or “iron pin”). To eliminate future conflict, it

is imperative that each monument be identified as to its exact nature, including size, material, and identifying marks.

In writing descriptions, the use of abbreviations should be avoided. All words should be fully written out to avoid future interpretation problems and possibly costly litigation.

### **Limitations on the Principle**

For a monument to be controlling it must be (1) called for in a document, (2) identifiable, and (3) undisturbed. If the monument is obliterated, it is controlling if its former position can be identified (a) by reliable witness evidence, (b) by surveyor's notes, (c) by improvements, and (d) sometimes by hearsay and reputation.

In written conveyances or documents, uncalled-for monuments cannot be considered as controlling. If it is the intent of the parties to have a monument controlling, it should be so stated in the deed. If a monument has deteriorated beyond recognition, either visual or by witnesses' evidence, the monument itself is no longer controlling. Once a monument is disturbed, its value as a control point ceases, but if a monument is merely obliterated and its former position can be identified, the former position will control.

Superiority of monuments over distance, angle, and area is so frequently accepted by the courts in all states that the danger of applying the principle comes from a contrary intent. If numerous other inferior terms in a deed refute the call for a monument, and if the other terms taken together indicate a contrary intent, the reason for the principle is nullified.

### **Control of Monuments Shown on a Reference Plat**

Where a deed refers to a plat and the parties acted with reference to the plat, all the monuments shown on the plat have equal dignity with those referred to in the writings. If the call for the plat is inconsistent with portions of the deed, the plat is controlling only where the parties acted with specific reference to the plat itself.

### **Obliterated Monuments**

If a monument is merely obliterated, but its former position can be identified by a preponderance of the evidence by the testimony of landowners, competent surveyors, or other qualified local authorities or witnesses or by acceptable evidence, the position so identified is controlling. Proof sufficient to convince a judge and jury that an obliterated monument has been restored to its original position rests with the surveyor.

## **11.22 CONTROL BETWEEN CONFLICTING MONUMENTS**

**Principle 12** *When there is a conflict between sequential title and sequential surveys, the title controls the surveys.*

*Monuments in the form of fences or boundary improvements built soon after the deed was written and in accordance with the original survey may become controlling, especially where several surveyors would locate the boundary lines in different places or where the true survey lines are uncertain. This possibly could include monuments set after the description was written. It is suggested that the surveyor not yield to requests to do such an act. Usually this practice is requested by individuals who wish to save money by placing monuments after lots are sold.*

*Where there are conflicts between monuments called for and no senior right is interfered with, the monument most clearly showing the written intentions of the parties is controlling. Unless a contrary intent is indicated by the deed wording, the following order of importance is presumed:*

- a. Identified lines or monuments of a survey called for in the chain of title.*
- b. Natural monuments (boundaries) called for in title documents and still in their original locations.*
- c. Artificial monuments as described in title documents.*
- d. Monuments set after the deed was written, and not occupying the spot of an original monument, are not controlling except where the deed calls for a survey to be made.*
- e. Where two monuments, otherwise equal, are in conflict, the one in harmony with distance, angle, or area becomes controlling.*
- f. Monuments in the form of fences or boundary improvements built soon after the deed was written and in accordance with the original survey may become controlling, especially where several surveyors would locate the boundary lines in different places or where the true survey lines are uncertain.*

## **11.23 EXPLANATION OF THE PRINCIPLES**

Any monument that marks a senior right is superior to any other monument listed here. For example, George Miller's deed calls for artificial monuments (surveyor's stakes) located so as to include all of Green River and several feet on each side. Ted Harper's deed, which is junior to George Miller's deed, reads to "Green River" and overlaps Miller's deed. The area of interference (the overlap of Harper's deed on Miller's deed) belongs to Miller. Normally, the artificial monuments would yield to the natural monument (Green River); it does not do so in this case because of a senior right. The first part of the principle, "and no senior right is interfered with," should not be overlooked, and, if applicable, should control or at least be examined.

The preceding principles have force in the event that monuments are called for. A specified artificial monument in conflict with an uncalled-for natural monument would be controlled by the artificial monument unless the intent is clearly indicated by other written words. A portion of a deed reading "west 200 feet to an iron pin; thence S 1°02' W, 200 feet to an iron pin; thence east 700 feet; thence to the point of beginning" would be interpreted by the found pins even though the course indicates

something different. S 10°02' W, 200 feet were found to be adjoining and parallel with an uncalled for river. If the deed had read “west 200 feet to an iron pin marking the bank of Red River, etc.,” the deed would be interpreted by the natural monument (river).

Normally, parcels described in deeds are controlled by the monuments called for, but if other factors show that the call for the monument was inserted in error, and the other factors more clearly show the intent of the parties, the reason for the control of the monument ceases. Only when called-for monuments most clearly show the intentions—and they usually do—are they controlling.

The results of the authorities may be stated thus: The lines run and marked on the ground are the true survey and, when they can be found, will control the call for a natural or other fixed boundary and conclusively establish the survey; however, when a younger survey calls for an older as an adjoiner, and no lines are found to have been marked for the younger on the side on which the older is called for, the line of the older becomes the division line between the two tracts; in other words, the younger is to be laid so as to adjoin the older. If a line is inconsistent with the older survey, the actually run and marked line on the ground for the younger survey may prevail.<sup>23</sup>

The general rule is that where the lines of senior and junior surveys conflict, the lines of the senior survey control, particularly where the junior is bounded with express reference to the senior. A junior survey *cannot* be used to control a senior survey.

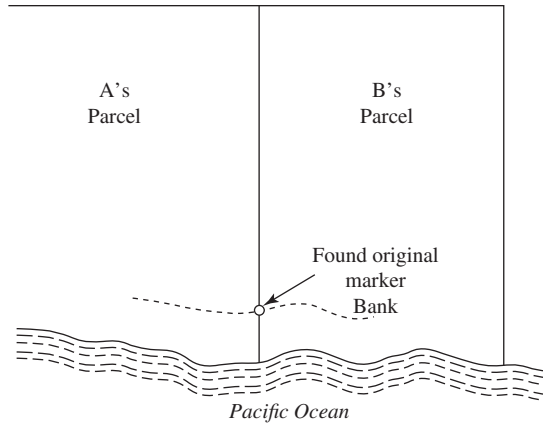
## Natural Monuments

A stake placed on the shore of a lake or on the bank of a stream and called for is to be used for line (direction) purposes and in some instances for proportioning, whereas the more certain monument, the water, is the determining natural monument that establishes the termination of the line. Thus, in Figure 11.2, the original surveyor set a stake on a bank near the ocean to designate A's and B's parcels. Because the waterline represents the limit of ownership of the subdivider, and because the surveyor could not conveniently set a stake at a submerged location, it is assumed that the stake set on the bank was intended only for the line and that the water as called for by the plat or in the description is intended to be the true termination of the line.

In a relevant court case, it was noted:

Generally, in interpreting boundaries of land, resort must be had first to natural objects or landmarks, next to artificial monuments, then to adjacent boundaries, and thereafter to course and distance, and, whenever a natural object is distinctly called for and satisfactorily proved, it becomes a landmark to which preference must be given, because the certainty which it affords excludes the possibility of mistakes.<sup>24</sup>

In this court report, there is an obvious error. If the call for an adjacent boundary is a call for a senior right, resort is first to the senior right.



**Figure 11.2** Original monuments set on the shore control the direction of a line but not its terminus.

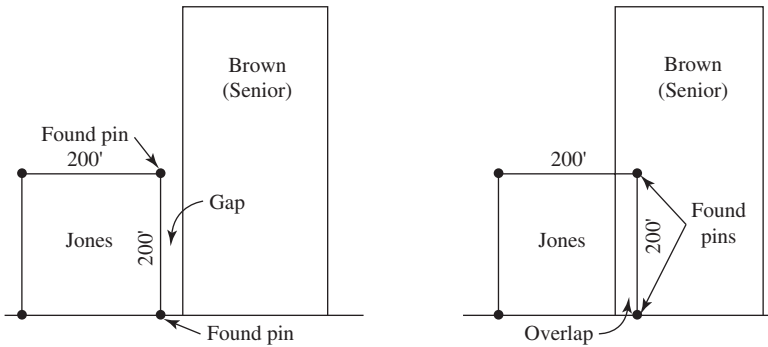
### Artificial Monuments

Monuments set prior to a deed and referred to can be considered in interpreting the description for retracement purposes in that any referenced found monuments are presumed superior to other monuments, provided that no senior right is interfered with. But artificial monuments set after the deed is written are presumed subordinate to other monuments. Only those monuments called for or considered a part of the deed are presumed controlling. All others are supplemental or extrinsic evidence, and their acceptance or rejection is a matter for the trial judge. But the surveyor and attorney should fully understand the local *Rules of Evidence*.

### Record and Artificial Monuments

In the event of a gap between a call for an adjoiner (record monument) and a call for artificial monuments, court decisions as to which controls have varied. In Figure 11.3, Brown's parcel is senior and Jones's parcel is described as "... thence N 89° E a distance of 200.00 feet to an iron pin located in Brown's property line; thence S 1° E 200 feet along Brown's property line to an iron pin located in the northerly side of sixth street; thence ...". If there is an overlap as shown on the right in Figure 11.3, the area of interference goes to the senior deed (Brown). However, when a gap exists between parcels, the courts have varied in their decision.

If the gap is small, the courts generally give the adjoiner line control; however, if the gap is large, the iron pins generally control on the theory that the gap belongs to the owner of the original parcel from which the two were carved. To avoid liability, whenever a surveyor finds a gap between artificial monuments and an adjoiner, as illustrated, he or she should disclose the facts on a plat presented to the client or the client's attorney. If the state issued two patents and there was a gap between them similar to that shown in Figure 11.3, the gap is a vacancy and belongs to the state



**Figure 11.3** Overlaps and gaps.

(ambiguities in patents are construed in favor of the state) or as provided by state law. Several other situations may be found in which the “found acreage” belongs to one of the adjoining owners under a legal doctrine, one of which has become known as the *Strip and Gore Doctrine*.

### Uncalled-for Monuments and Boundary Improvements

One of the more serious problems retracing surveyors encounter is what weight to give to “Topsy” corners. This term was coined to represent the character “Little Topsy” in *Uncle Tom’s Cabin*. When asked where she came from, Topsy’s response was “I don’t know. I guess I just grew.” Uncalled for monuments that are supposed to identify corners just seem to appear. Yet many people want to give them the same authority and dignity as if they resulted from a survey and a description. Usually, no one knows who set them or where they came from, nor when they appeared. These found uncalled-for monuments should be approached with suspicion and control nothing.

A found monument that cannot be related to a title document should be given little or no credence.

Monuments set after a deed was written do not control a boundary, although they may be used as evidence for possible prescriptive points. Monuments in the form of fences or improvements built soon after the deed was written and in accordance with the original survey may become controlling where several surveyors would locate the property lines in different places or where the true survey lines are uncertain. When there is certainty in the location of the boundaries of a parcel of land and when several surveyors would all locate the property in precisely the same place, improvements such as buildings and fences are usually treated as encroachments, but if the survey lines are uncertain from lack of control of known fixed monuments, and

several surveyors might place the lines in different places, the fences and improvements are probably better evidence of the original lines of the original parties. The courts accept the most certain evidence to fix the limits of a property. Where the survey lines are uncertain, the courts are loathe to change existing fences without just cause, as in the following case:

Where the call of both lots in distance from the line of a street is rendered uncertain by difficulty in ascertaining the true line of the street, some surveyors sustaining plaintiff's line, and others the boundary claimed by the defendant, but there is not uncertainty as to the possession given to plaintiff's grantor by the original owner of both lots, and as to the fence which such grantor was then permitted to erect and maintain, and the subsequent grant by the original owner of the remainder of the land to defendant's grant was bounded by plaintiff's lot, which was then fenced, such boundary must be deemed a monument which will control the call for distance in the description of the defendant's lot.<sup>25</sup>

In time, most monuments become lost or obliterated. Wood rots, iron rusts, trees die, and land erodes. With the destruction of monuments, land boundaries may not be lost. Monuments and boundaries must be located from the best available evidence. Often, possession is all that remains. The most difficult task of the surveyor is in the evaluation of fences. In the western states, this task may be easier, for the surveys are more recent and many witnesses may be available to testify. In the eastern states, where possession extends back hundreds of years, only reputation and hearsay may remain.

## 11.24 IMPORTANCE OF THE WORD "TO"

*To* is a word of exclusion. In a land description, "to" flashes a warning to the surveyor, attorney, or title person—look for a call that excludes informative calls of distance, angle, or area. "To a stone," "to a stake," "to the corner of lot 16," and "to the point of beginning" are all examples of the use of the word *to* where the distance, area, or course given yields by presumption to the object or point called for. Surveyors often fail to locate points properly where there is a call for an adjoiner such as "S 76°21' E, a distance of 327.21 feet to the southeast corner of that land conveyed to Jones in Book 1276, page 16 of Official Records." This means in effect that Jones's boundaries must be located before the survey can be completed. The cost of the survey increases because boundaries of more than one parcel of land must be determined.

## 11.25 DIGNITY OF RECORD MONUMENTS

Because a record monument is a monument called for in a land conveyance, its dignity depends on whether it is a senior right (a call for a senior adjoiner), a natural monument, or an artificial monument. In court reports, especially in the syllabus,

certain statements may fail to take into consideration the true nature of a record monument. For example, a statement that artificial monuments control a call for an adjoiner (a record monument) can be quite true, provided that the call for the adjoiner is not a senior right. Referring to the discussion accompanying Figure 11.3, courts are not always in agreement as to the best solution when this occurs. The proper procedure may depend upon the circumstances of each case, and the law in the particular jurisdiction. This last sentence conflicts with the statements accompanying Figure 11.3.

## 11.26 CONTROL POINT OF A MONUMENT

The exact location of the point on a monument that one measures from or to has various meanings under different circumstances. Where the deed term is “to a stake,” the measurement is to the center of a stake. A call for a ditch, wall, tree, fence, road, or nonnavigable stream, unless the contrary is stated, usually means the intent is to the center of the object called for. Where a call is to go to a structure such as a building, house, mill, or wharf, the call usually terminates at the side of the structure.<sup>26</sup> When a line terminates at a water boundary, the point of termination is usually defined by state law, and varies from state to state.

A problem may be encountered if the corner monument cannot be occupied, such as a tree, or when it falls at a point that cannot be occupied, or in water. Then nothing remains except to take “offset points” and calculate the line length and angle. If required to do this, the surveyor should show his or her calculations in the field book for reference.

## 11.27 UNCALLED-FOR MONUMENTS

As noted previously, an unmentioned monument, set after a parcel of land has been conveyed, has no value whatsoever for determining where the written deed should be located. However, such a monument may have value to determine unwritten rights. Cited in court cases, usually involving reformation of a deed, are situations in which uncalled for monuments, set after a conveyance is made, determine a boundary location. In New Hampshire, the court said: “Where a monument does not exist at the time a deed is made, and the parties afterwards fairly erect such a monument, with intent to conform to the deed, such monument will control.”<sup>27</sup> A similar finding has been approved in other states, including Maine.<sup>28</sup>

Cases of this type are based on what is called an *unwritten agreement*, where (1) the adjoiners do not know where their true boundary line is located, (2) the adjoiners agree to a location and set a monument to identify it, and (3) the adjoiners intend the line so marked to be the true line. Later, one of the parties discovers that the written deed line does not agree with the unwritten agreement line and then wants the written deed line to control.

Surveyors have no authority to reform a deed without approval of the adjoiner; only a court can do this. If a surveyor does uncover a situation in which all the elements of the unwritten agreement can be proved, all the surveyor can do is call attention to the situation and advise the client to seek legal advice or attempt to suggest to the adjoiners that they consider executing an agreement deed. At all times, the obligation of the surveyor is to call attention to differences between the conveyance writings and occupancy. Reforming a deed is a legal matter that should be referred to the legal profession.

If the evidence shows the monuments were placed in the ground soon after the original survey, by the same individual who conducted the original survey, infrequently the courts have been known to accept these as original monuments.

This problem of uncalled for monuments probably has caused extensive litigation from inexperienced surveyors. When *any* monument is found, whether called for or not, inexperienced surveyors feel obligated to accept any monument “close by” when the finding of these uncalled for monuments indicate the possible need for additional research and field investigations.

## 11.28 ERROR OR MISTAKE IN A DESCRIPTION

**Principle 13.** *If a description of land contains an error or mistake, and if the error or mistake can be isolated, the error or mistake can be placed where it occurs.*

In Maryland, the usual rule in the event of conflict is that monuments control over course and distance, and course (direction) controls over distance.<sup>29</sup> In the case of *Wood v. Hildebrand* involving monuments, course, and distance, the court observed:

When the course and distance conflicts, the whole description is to be considered to determine which conforms to the intentions of the parties, and there is ordinarily no rule by which preference is to be given to one element as against the other.

We take the view that the distance of 225 feet was in error. The scale of the original plat shows this on its face, and the course of the closing line N 15 & ¼ degrees W confirms it. The correctness of this is likewise confirmed by the call to the shore of St. Nicholas Creek. . . . This solution is confirmed by still other facts; it accepts the correctness of the back line of the entire tract, as shown upon the plat, both as to scale, figures and actual measurement, and it gives effect to the call of the Western boundary. This solution requires a closing line of 228 feet instead of 338 feet.<sup>30</sup>

In this case, distance was corrected because all other factors indicated that it was the only item in error. The error was placed where it occurred.

In Kentucky, a deed from the state did not close, and in accordance with the rule that course controls distance, the last two courses had to be extended 38 poles and 62.7 poles to reach the point of beginning.<sup>31</sup> This theory was rejected by the court, and the court noted that if the seventh course were changed from south 77° west 80

poles to north 77° west 80 poles the deed would close within 40 feet. Furthermore, the original plat indicated that this was true and was the proper method for resolving the conflict. The error was placed where it occurred, or at least where the court determined it occurred.

## 11.29 CONTROL OF BEARING AND DISTANCE

**Principle 14.** *Bearing and distance are presumed superior to surface, and only where bearing and distance more clearly show the intent do they control other elements.*

*In the priority of calls these two elements rank very low on the scale of acceptance. A course can be helpful in looking for evidence, in that the end of a course would indicate a search area to look for corners, etc.*

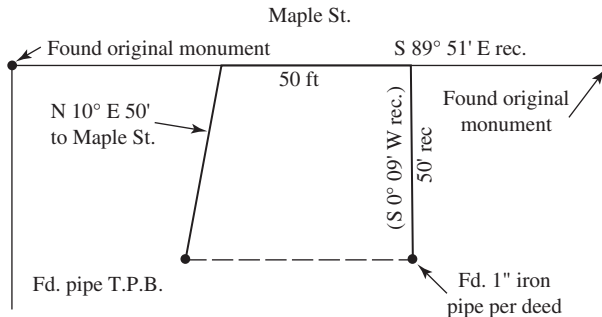
Bearing and distance quoted are more often informative rather than controlling terms. Dimensions give way to the objects called for; hence, they are frequently more or less in meaning. Where there is a call for a monument, bearing and distance are elements to be used to pinpoint the area of investigation to recover monuments called for. Only when the called for monument is missing can the elements of bearing and distance control.

When either bearing or distance must yield, the courts have had diverse opinions as to which should yield. In metes and bounds descriptions, where monuments are not called for, both bearing and distance are essential for the determination of a line, and neither need yield to the other. In the case of a call for the adjoiner (record monument), bearing may be held and distance may yield. Thus, “N 10° W a distance of 25 feet to the line of Jones’s property” means that you go “N 10° W” to the line of Jones’s property, and if the distance is more or less than 25 feet, the distance must yield. A Texas court held:

Though courts have agreed that amongst a diversity of calls, preference, everything else being equal, is to be given first to the natural objects called for, next to the artificial objects, and lastly to course and distance indicated, yet, when a discrepancy among the calls is established, and the circumstances in proof show that course and distance are the more certain and reliable evidence of the true locality, then course and distance will prevail.<sup>32</sup>

## 11.30 CONTROL OF EITHER BEARING OR DISTANCE

Where there are several provisions—that is, bearing, distance, and a call for a monument—such a construction is to be adopted, if possible, as will give effect to all. Frequently, bearing, distance, and a call for an adjoiner are in conflict, and where in conflict, neither bearing nor distance is considered superior to the other. The construction is adopted that will give control to the largest number of terms and still recognize the presumed paramount control of a call for an adjoiner. There are three



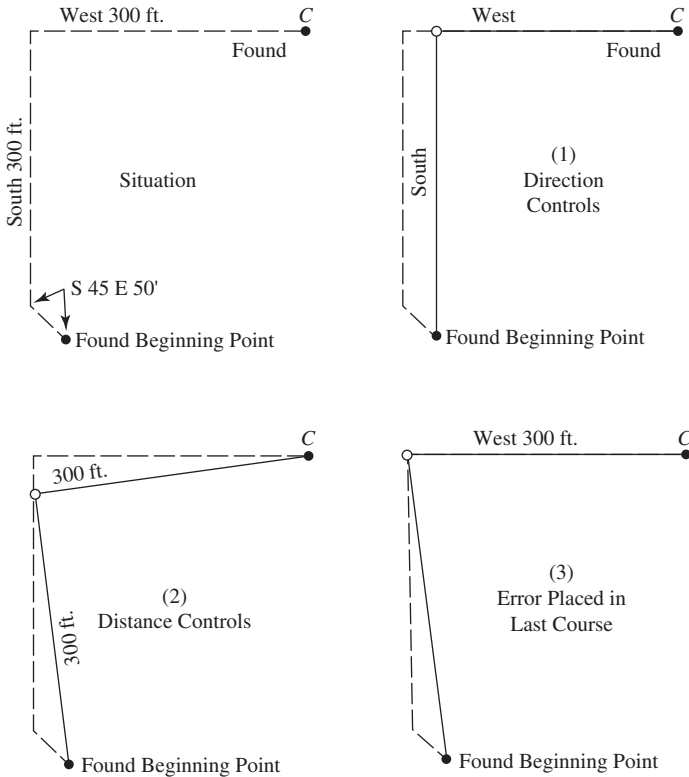
**Figure 11.4** Description with both distance and bearing yields.

cases: (1) distance yields, (2) bearing yields, and (3) both distance and bearing yields. A description including all three cases is “thence N 10° E a distance of 50 feet to the southerly line of Maple Street; thence south 89°51’ E a distance of 50 feet along the southerly line of Maple Street; thence S 00°09’ W a distance of 50 feet to a 1-inch iron pipe; etc.” (see Figure 11.4). In the first call given, the line extends N 10° E to the southerly line of Maple Street whether the distance is 50 feet or not. In the second call, the distance is 50 feet along Maple Street whether the bearing is 89° 51’ E or not. In the third call, you extend to the 1-inch iron pipe whether it is 50 feet or S 00°09’ W or not. In each case bearing, distance, or both yielded to the call for a monument, but in each case only that element(s) yielded that was in conflict with the monument.

This analysis seems logical and convincing, but let the evidentiary facts change. Suppose that a 1-inch iron pipe is found at the end of the third course, and the courses are run in reverse. The N 0°09’ E 50.00 feet is run and it intersects the street line exactly. Next, 90° is turned and the line falls exactly on Maple Street. After the distance of 50 feet is measured along Maple Street, an angle is turned to the point of beginning of the deed and it is found that the distance to the point of beginning is exactly 50 feet but the bearing is S 11° W instead of S 10° was called for. Now what controls: the bearing of S 10° W or the distance of 50 feet? In this situation, the only inconsistent element is the bearing of 10°, and therein lies the error. Hence, all conditions must be analyzed before a distance or bearing is considered as superior or is rejected. The first analysis was correct in theory, but it had to be modified when the cause of the error was discovered and isolated. Before giving bearing or distance control, the possibility of a mistake or error must be investigated and eliminated. The surveyor has an obligation to examine all reasonable avenues to resolve a discrepancy.

Situations have occurred in which direction was declared controlling over distance, and others in which distance was declared controlling over direction. Where an error must be placed in either of two adjacent lines, the courts have varied in opinion. To apply a pro rata application of bearing or distance defeats the responsibility of the surveyor or the courts to isolate the error and apply it where it is located.

In Figure 11.5, two monuments, one at point C and the other at the beginning of the land description, are fixed in position and the last two courses read “thence West 300.00 feet; thence South 300.00 feet to the Point of Beginning.” When running



**Figure 11.5** Possible solutions to placing an error.

these last two courses, the end of the last course fails to reach the beginning point by an error of closure of S 45° E, 50 feet. Where is the error placed? Three possible solutions exist: (1) Let direction control, (2) let distance control, or (3) place the error in the last course.

There is no hard-and-fast rule about what will control. One surveyor will have the distance control, while a second surveyor will have the bearing control. The retracing surveyor should give serious thought as to which he or she will accept and not just make the assumption one will control over the other.

### Control by Direction

In a New Jersey case, the court held: “Course governs distances in a survey; and it is error to instruct the jury that a certain line must stop at the distance given in the description.”<sup>33</sup> According to the court’s ruling, if this situation occurred in New Jersey, the problem would be solved by running west from point C to a point located north of the beginning point and then running south to the beginning point. This is in general agreement with Texas, Georgia, Illinois, Maryland, Kentucky, Ohio, and federal common law as well as some eastern states.

In Kentucky in 1957, one corner was found, the next was lost, and the next was found.<sup>34</sup> The two courses in between the found points were run on deed bearings even though one line was shortened from 100 to 50 poles and course controlled distance. In 1915, wherein distance was given preference to course (meaning direction), the court stated:

“It may be laid down as a universal rule, that course and distance yield to natural and ascertained objects. But where these are wanting and the course and distance cannot be reconciled, there is no universal rule that obliges us to prefer one or the control of distance over angle.” The retracing surveyor will find court decisions all over the spectrum and should use his or her own determination.

### **Control of Distance other**

Cases may exist in which the one or the other may be preferred upon a minute examination of all the circumstances.”<sup>35</sup>

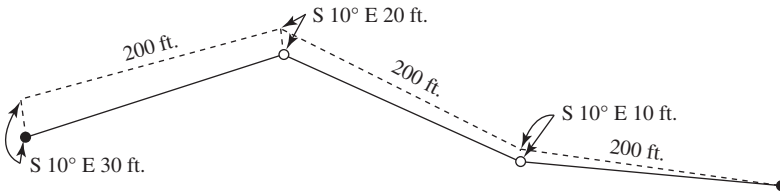
Research has revealed that the second solution in Figure 11.5, that of keeping the two distances 300 feet each and allowing the directions to fall where they may, has been the minority finding in states other than those containing sectionalized GLO lands.

### **Error Placed in the Last Course**

The third solution, that of placing the error in the last course that recites to the point of beginning, has also been used, especially when the error of closure is minor. In litigation involving metes and bounds situations, the majority of state courts have given bearing control over distance. Although this may be so, the true rule is “to say that distance shall yield to course, or vice versa, where there is a conflict would seem to be entirely arbitrary; and the true rule seems to be that one or the other shall be preferred according to the manifest intent of the parties.”<sup>36</sup> As previously illustrated, all factors, such as possessory acts, evidence, and prior decisions of specific jurisdiction, should be analyzed before a final decision of the proper solution is made. The surveyor should always be prepared to testify in court as to alternative solutions, but if asked, he or she should be able to give an opinion as to the correct solution for his or her area of practice. This is a modification of the rule that when balancing a survey, when an error is determined, the surveyor may place the correcting error in the line or angle at which the error occurred, if it can be positively ascertained.

## **11.31 DISTRIBUTION OF ERRORS IN SEVERAL BOUNDARY LINES**

In Kentucky, where course is preferred to distance, a situation occurred in which the point of beginning was identified as a tree and the remaining points called for were stakes, none of which could be found or identified. Neither the plat nor the patent mathematically closed, and the question of where to place the error of closure arose. The court found that where a “call patent” (meaning wording by bearing and



**Figure 11.6** Compass adjustment rule.

distance without set monuments) exists, the error of closure was placed in the last course as follows:

There are instances where the plat may be resorted to correct an error in the patent calls, but, before this can be done, it must first appear that the mistake is in the patent (calls) as issued. [The error] is just as apt to be a mistake in the surveyor's plat as in the patent calls. There being no difference between the calls in the patent and the calls in the surveyor's certificate, the surveyor's plat is of equal dignity with his other certified work but not superior. In such cases, the correct method of locating the patent is to commence at the beginning corner, where, as here, it is clearly established, follow the calls, course and distance of the patent, and close the last line so as to make a complete boundary.<sup>37</sup>

Here the error was placed in the last course.

In a previous case in the same state in 1907, the syllabus states: "Where corners marking three successive lines of a survey are lost, the distances of the three lines will be altered proportionately to make them in conformance with the known parts of the boundary rather than to radically alter the course of one of the lines."<sup>38</sup>

It is rare that altering only distances proportionately causes a traverse to close mathematically, as in this case. In the event that two court cases within a state are in disagreement or are inconsistent, the most recent decision controls or is binding.

Where there are a number of angle points in a boundary and an error of closure that cannot be isolated, as shown in Figure 11.6, the error of closure, according to the *Manual of Instructions for the Survey of Public Lands*, is disposed of by the compass rule adjustment. The lines are run and temporary stakes set. The bearing and distance of the closing error are determined in the field by measurement.

At each angle point, the temporary corner is moved in the direction of the closing bearing a distance proportional to the angle point's distance from the starting point.

## 11.32 CARDINAL DIRECTIONS

A client's deed reads: "Beginning at a point (as defined below); thence west 20 rods; thence south 20 rods; thence east 20 rods; thence north 20 rods to the point of beginning." The question in each of the following circumstances is: What determines the direction of west, south, east, or north? Are astronomic bearings used, or are there modifiers that predicate the use of some other basis of bearing?

*Situation 1.* The point of beginning is a rock mound, which is found. Adjoiner deeds use the same type of calls and there are no senior rights. Astronomic bearings are indicated, except in those states in which old deeds are presumed to have used magnetic bearings.

*Situation 2.* The point of beginning is described as the southeast corner of Section 10 in a given township and range of sectionalized land. When the original patent is researched, it is found that the original patentee had the southeast quarter of the southeast quarter.

In this situation or a similar one, the courts have held that words are presumed to be used with their ordinary meanings and that west, south, east, and north, when unmodified, are relative to true north. However, extrinsic evidence may be taken to explain a local or an unusual meaning or the custom in the area.<sup>39</sup> In a number of cases, the decision has been to interpret “west” as parallel with other lines.<sup>40</sup>

In California, when the word *due* was placed in front of the word *north*, the basis of bearings was changed to astronomic north, as indicated in the case of Richfield Oil Corp.<sup>41</sup> Prior decisions did not differentiate between geodetic and astronomic bearings.

### 11.33 UNRESTRICTED GENERAL TERMS

In deeds, general words and phrases such as “northerly” or “about 20 chains” are sometimes used, and if the terms are not restricted by other words, they may become exact. In *Bosorth v. Danzien* unrestricted “northerly” became due north,<sup>42</sup> and in *Wise v. Burton* unrestricted “about 20 chains” became exactly 20 chains.<sup>43</sup> If the deed containing “northerly” had been written “northerly to a 2-inch iron pipe,” then northerly could mean anything from 45° east to 45° west of north, to the found 2-inch iron pipe. The problem is created when the pipe is missing and cannot be found.

It is probably safe to assume that deeds containing unmodified ambiguous terms such as “about” or “northerly” were prepared by the unqualified. The use of these terms simply meant that the scrivener did not know the true distance or bearing. Such deeds keep courts and surveyors busy. In descriptions, a scrivener will use a general term such as *near* with the assumption that it will provide certainty to the location of another point. If a question arises as to the legal interpretation of a word, the courts usually rely on *Black’s Law Dictionary*. Black describes *near* as follows:

NEAR. The word as applied to space is a relative term without positive or precise meaning, depending for its signification on the subject-matter in relation to which it is used and the circumstance under which it becomes necessary to apply it to surrounding objects. *Case-Fowler Lumber Co. v. Winslett*, 168 Ga. 808, 149 S.E. 211, 213.

In all probability, if the term *near* is used in a description it is ambiguous and probably should not be used unless accompanied by specifics of distance and other specific references.

### 11.34 DIRECTION OF SURVEY

“In attempting to trace the description on the ground, the court should follow the footsteps of the surveyor rather than the reverse course.”<sup>44</sup> In the absence of certainty of the point of beginning and in the presence of certain monuments farther along, the surveys are sometimes backed in, but this procedure is to be avoided except where the intent is clarified. The presumption is that the survey is to be made in the direction of the deed; the contrary must be justified.

If an insurmountable difficulty is met with in running the lines in one direction, and is entirely obviated by running them in the reverse direction, and all the known calls of the survey are harmonized by the latter course, it is only the dictate of common sense to follow it.<sup>45</sup>

There is no hard and fast rule for closing a survey, but such rules as are employed are but rules of construction in aid of an effort to relocate lost lines as they were located in the original survey, which is always the problem for solution, and rules of construction must give way to competent evidence disproving their applicability to a given case. One rule of construction often recognized and applicable here is that reversing calls is as lawful and persuasive as following their order.<sup>46</sup>

There may be times when a conveyance has no direct call for monuments, and its point of beginning is an adjoiner's deed. In New York in 1913, the issue was whether the starting point was intended to be at the line of occupancy or at the premises conveyed. The point determined by the adjoiner's deed was correct, and the occupancy point was rejected. The court said: “The beginning corner of a survey is not usually of any more importance in determining the location of the survey than any other corner therein.”<sup>47</sup>

### 11.35 AREA OR SURFACE

**Principle 15.** *Except where area expressly states the intentions of the parties to a deed, area is presumed as subordinate to other considerations.*

“South 5 acres of lot 13” is a description in which area is the sole controlling factor that establishes the north line of the survey, and in the absence of other calls, area is the controlling element. In a conveyance reading “5 acres, no more, nor no less, described as follows,” or “exactly five acres,” area probably will prevail if an ambiguous description follows. But if the perimeter description is without error, the area becomes more or less. Occasionally, area is the deciding factor where alternate lines can be drawn from the written instructions, and area computations fit one of the alternate lines, as in the case in which the judge observed:

Quantity . . . of itself is no description. It does not give boundaries of course (bearing and distance), therefore, metes and bounds will prevail where there is conflict. But

when boundaries are doubtful in themselves, quantity often becomes the controlling fact. It often makes the metes and bounds certain. The quantity, taking the eastern edge as the boundary, approximates the quantity mentioned in the deed, being eleven acres more than the deed calls for. Taking the western ridge for the boundary is added 680 acres, nearly  $2/3$  as much more, to the deed. Such a discrepancy should not be disregarded in arriving at the proper location of the disputed boundary under the circumstances disclosed in the case.<sup>48</sup>

In the case in which the original surveyor established the first 13 calls in a patent and then, at the instructions of the seller, inserted adjoiner calls for the remainder of the land, the land conveyed follows the lines of the original 13 calls and the adjoiners described, even though 600 acres were conveyed instead of 150 as supposed (construed in favor of grantee).<sup>49</sup> In New York in 1838, when the land was described by monuments, course, and distance, and stated 200 acres, strict measure, and no more, the monuments and course and distance controlled.<sup>50</sup>

### 11.36 POINT OF BEGINNING

Although every deed must have a point of beginning, it is not to be assumed that the beginning corner is of any more importance than any other corner recited in the description. A monument called for and found at the second corner often fixes the position of the second corner independently of the first corner. Both corners have equal standing, and in all conveyances all recited corners have equal dignity.

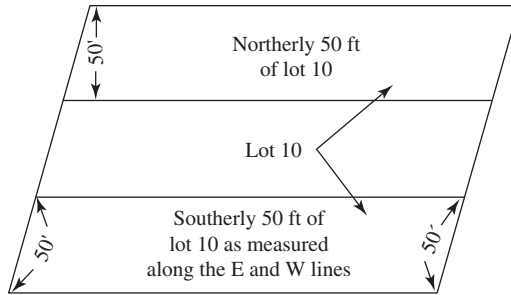
### 11.37 CONSTRUED MOST STRONGLY AGAINST GRANTOR

**Principle 16.** *A grant or conveyance is to be interpreted in favor of the grantee except that a reservation in any grant, and every grant by a public officer or body, as such, to a private party, is to be interpreted in favor of the grantor.*

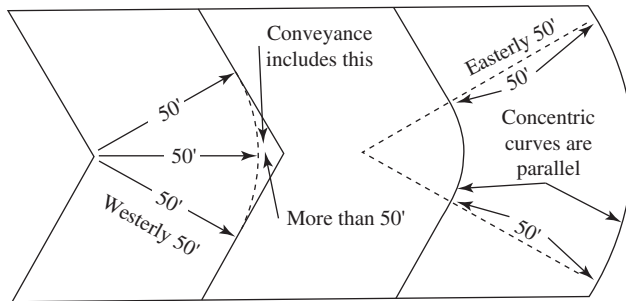
Because language used in the instrument was selected by the grantor, who should have been more familiar with the property, the deed should be construed most strongly against the grantor. This rule applies only where two or more meanings are possible, but not where one of the parties misunderstands a clearly expressed written meaning.

The northerly 50 feet of lot 10, as shown in Figure 11.7, implies that the 50 feet is measured at right angles to the northerly line, thus giving the buyer the maximum possible area. In Figure 11.8, the westerly 50 feet shown actually includes more than 50 feet at the angle point, as parallelism is implied by the “westerly 50 feet.”

In New York, a similar situation occurred in a deed reading “two miles on each side of a certain creek.” The court found that the line should be run so that at every point the line will be 2 miles from the stream in some direction, and not by parallel lines running from points 2 miles distant from the stream on a line traversing it.<sup>51</sup>



**Figure 11.7** The northerly 50 feet of a lot are measured at right angles to the northerly line.



**Figure 11.8** At an angle point, the westerly 50 feet conveys more than 50 feet because of implied parallelism.

In Vermont, the court observed that “if the intentions of the parties upon the face of the deed be ambiguous, the construction is to be most strongly against the grantor.”<sup>52</sup> The reverse was held where the grant was a patent from the state. In that the words “near Cumberland Gap” could not be construed to be “in Cumberland Gap,” it was construed against the grantee.<sup>53</sup>

### 11.38 ERRORS AND AMBIGUOUS TERMS

**Principle 17.** *Certain and definite statements will prevail, and erroneous or ambiguous terms may be rejected, but such rejections should be as few as possible.*

Errors in any description may be corrected or rejected if there is sufficient information in the deed to indicate where the errors occur. A change of bearings from N 10° E to N 10° W, as proved by a mathematical closure, may be corrected. A general statement refuted by a particular call may be rejected, but only that part refuted may be rejected. A call in a survey or deed may be rejected for inconsistency when in the description enough still remains to ascertain the land with certainty.<sup>54</sup>

### 11.39 COORDINATES

Coordinates are computed from measurements of distance and angles by various formulas. The coordinate values are a product of calculations, which themselves have inherent errors. The quality of the coordinates are only as good as the least significant number of the measurements from which they were calculated. In the order of importance of conflicting deed elements, coordinates cannot be presumed to rank higher than the method used to determine them; they are presumed subordinate to monuments. Whether coordinates will outrank other measured distances or angles may depend on the accuracy of the method used to determine the coordinates and the proximity of the control points from which the coordinates were calculated. Although coordinates can be established with precision, not all are. If a monument is found and the coordinates of the monument are determined precisely by an acceptable method, and the monument is later lost, the coordinates so established will probably form the best available means of reestablishing the former position or providing an area of search to look for monuments. Similarly, if an original monument is set and the surveyor carefully determines the exact coordinates of the monument, the coordinates, an informational call, will probably be the best means of restoring the corner, if lost; but if the monument is not lost or disturbed, the monument itself is presumed correct irrespective of whether the coordinates were determined correctly. Coordinates should be considered an informational aid to assist in replacing a lost monument, not a means to determine where a found undisturbed monument should have been.

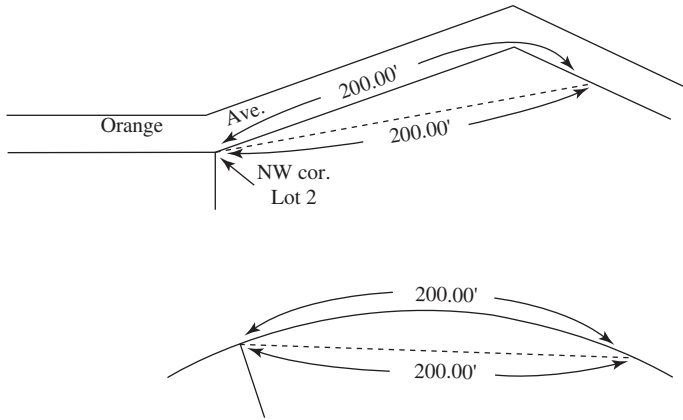
### 11.40 DIRECT LINE MEASUREMENT

**Principle 18.** *Unless stated otherwise, a distance is measured in a straight line along the shortest measurable distance, usually horizontal.*

Distances recited in descriptions are presumed to be straight-line point-to-point (corner-to-corner) distances. In all probability, this was not the method used in creating the original description. The modern methodology is to run random lines using traversing methodology and then compute the resultant straight line, which is then placed in the description, without any explanation.

Ambiguous conditions arising from this rule are shown in Figure 11.9. Where a distance is intended to be along a line or curve, the fact should be so stated. “Beginning at a point in Orange Avenue 200 feet easterly from the NW corner of lot 2” is indefinite, but “beginning at a point in Orange Avenue, 200 feet easterly from the NW corner of lot 2 as measured along the road” is certain, as is “along and with the right-of-way line.”

The law does not declare in favor of a straight line between monuments, where the language employed in the deed shows that a different line was intended. If, in a deed, the boundary line on one side of the land conveyed is described as running from a given



**Figure 11.9** Deeds reading “200.00 feet from the northwest corner of lot 2” may be ambiguous.

monument easterly to a creek parallel with the southerly line of another tract of land, and such line of the other tract of land is not a straight line, but meanders, then the boundary line described in the deed will run parallel with the other line in its meandering, and not straight, and parallel with its general course.<sup>55</sup>

## 11.41 TREATMENT OF CURVES

**Principle 19.** *When a curve factor is given as a whole number, the curve factor with the whole number was probably the controlling assumed figure originally and should remain as such. When radius, tangent, and degree of curve are all odd, a prorated adjustment between fixed monuments is indicated. Government (city, county, and state) relocated curved street lines are not acceptable for lot location unless based on original curve stakes.*

As curve data are fixed by computation from two known factors, the problem is to fix the most likely control. The usual situation is where the given delta differs from the delta as measured by the resurvey. Almost always the original surveyor assumes one of three factors after the delta has been fixed: (1) The radius is assigned a whole number, (2) the curve is assigned an even degree of curve, or (3) the tangent is assigned a definite amount. Where the radius is an odd number, the chances are that the radius was computed from other data. All even degrees of curvature have odd radii; a check must be made to determine whether the radius was derived from an even degree of curvature (always suspect this where a curve adjoins a former or existing railroad right-of-way). Where the tangent is an even whole number (center-line or side line), the chances are that this was the control intended.

Frequently, in rerunning street lines, the highway surveyors locate curves with changed radii, delta, or both. Such relocation can be used for defining the recognized

street boundaries, which may have arisen from prescriptive methods but cannot be used to locate original lines. It is far safer to relocate lots from known lot corners or to block corners and work toward the curve in question.

#### 11.42 FIRST STATED CONDITIONS

**Principle 20.** *When two factors are in conflict and nothing else indicates which of the two is correct, the first stated is preferred.*

Although only two elements of a curve are necessary to determine a curve mathematically, three are usually given. If the three—the radius, delta, and tangent—are in conflict and all are odd in measurement, the first two stated are preferred. If, however, by reasonable analysis one of the three is found to be in error, the one in error should be disregarded. If a correct closure is obtained by using the delta and tangent, the radius given is in error.

#### 11.43 WRITTEN AND CHARACTER NUMBERS

**Principle 21.** *When numbers are shown both as figures and spelled out as words, the words will control unless the contrary can be proved.*

The probability of spelling out a word in error is much less than the chance of writing a number erroneously, especially where a decimal point is misplaced.

#### 11.44 UNIT IMPLIED

**Principle 22.** *The scale unit of the map is implied to refer to all distances without a character mark on the map.*

The mapping custom of surveyors has been to omit the sign indicating which unit has been employed. Where the scale of the map is given, a comparison between the enumerated distances and the distance scaled will reveal the unit. On a map with a scale of 1 inch equals 50 feet, unless the contrary can be shown, it is implied that all numbers unmarked by a unit are in feet.

#### 11.45 FEET AND INCHES

Modern surveying practice calls for measurements to be made in feet and decimal parts of feet. Some of the older survey plats did use inches without stating such facts on the map or placing the customary inch symbol on the inches intended. Only by an examination of the map as a whole can the intent be determined. The use of 11",

meaning 11 inches, is a clue for proving the intent to be inches, whereas the use of numbers above 12, indicating decimal parts of a foot, is a contrary proof.

## 11.46 GENERAL AND PARTICULAR PROVISIONS

**Principle 23.** *A particular intent will, by presumption, control a general one that is inconsistent with it.*

The validity of a deed and or description is a question for the court to determine.

Most deed descriptions have a general statement to identify the locale or vicinity, and a particular statement to identify the land from all other parcels in the vicinity. “All that portion of Section 10, Township 15 South, Range 3 East, SBM, more particularly described as follows” is a general description that will be followed by a particular description. If in the particular description the land was clearly described as lying within both Sections 10 and 11, the particular facts are controlling and that portion in Section 11, if owned by the grantor, would be conveyed even though not mentioned in the general description. This principle is based on the fact that a particular thing described in detail is much less apt to be in error than a general statement written without detailed thought.

A deed reading “Thirty-one acres in the east side of lot seven in Section fourteen, township seven south, range nine west, together with all improvements thereon” and followed by a particular description, “the land hereby conveyed being bounded on the south by the Bay of Biloxi; on the east by the Scale property; on the west by the lands of Martin; and on the north by the north line of lot number seven” is to be construed by the particular description even though only 17.3 acres were conveyed.<sup>56</sup>

But if a contrary intent is shown by the wording, the principle may be overcome. In a will, the term “the house and lot known at No. 114 Tenth Street” controlled a particular description that did not include all the land that the house occupied.<sup>57</sup> The general description showed the intent of the testator, that of willing a house and including all things necessary to enjoy the use of the house. The principle that a general description is not controlling over a specific description applies to cases where the specific description is not ambiguous.<sup>58</sup>

*Directory calls* are those that merely indicate the neighborhood wherein the different calls may be found, whereas *locative calls* are those that serve to fix the boundaries.<sup>59</sup> *Particular calls* are special locative calls; *general calls* are descriptive or directory. General calls are merely to direct a person’s attention to the vicinity or neighborhood, whereas locative calls are made with care and exactness. General calls cannot be given much credit when in conflict with a particular locative call.<sup>60</sup>

In some states, a deed that recites a conveyance by street number is either void or voidable.

## BASIS OF BEARINGS

### 11.47 DEFLECTION METHOD VERSUS COMPASS BEARINGS

Direction determinations in early surveys were made employing the magnetic compass. The results were either magnetic bearings or the declination was “set off” as calculated to give a true bearing. Starting around 1840, the solar compass was the accepted instrument for federal land surveys. Later surveys, beginning about 1870 and mostly since 1900, were made using an instrument to measure the angle between lines. From the angles, bearings were computed based on a determination of direction on one or more of the lines. The angular method of determining bearings (commonly called the *deflection method*) differs fundamentally from the compass method. To illustrate this difference, an extreme situation is shown in Figure 11.10, where a parcel of land (*ABC*) apexing at the North Pole is being surveyed. Assuming that points *A*, *B*, and *C* are fixed in position by monuments and that the deflection method is being used, the surveyor measures the angles at *A*, *B*, and *C*. At point *B*, a star observation is made and it is determined that the direction of line *BC* is due west. The resulting description is “Beginning at the north pole; thence due south 981.30 feet; thence west 500.00 feet; thence N 27° E a distance of 1101.33 feet to the point of beginning.” Obviously, the N 27° E is true north, and the convergence of meridians is not taken into account. However, the figure will close mathematically. If we were to survey the same parcel by the compass method, the resulting description would be “Beginning at the north pole; thence due south 981.30 feet; thence west 500 feet; thence north 1101.33 feet to the point of beginning.” This description will not, of course, close mathematically. Furthermore, the straight line west (*CB*) does not have a constant bearing; at point *C*, looking back at point *B*, the bearing is N 63° E, not east. Technically speaking, all lines, other than true north lines or lines along the equator, change bearing as a person travels along the line.

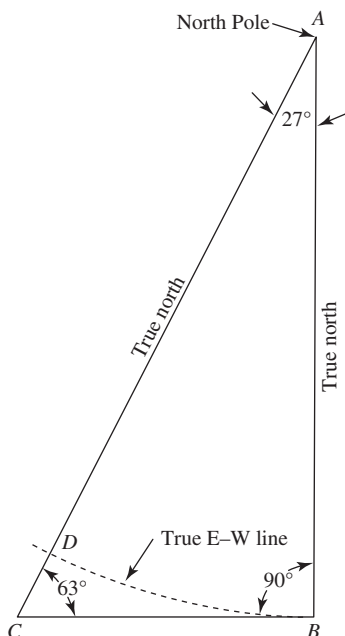
The differences between the compass and the deflection angle method of describing land boundaries diminish as the land is located farther from the poles and as parcels diminish in size. Within a small area of the continental United States, the differences are usually negligible.

In modern descriptions, the following presumption exists:

**Principle 24.** *Unless the contrary is stated, it is presumed that every bearing given in a present-day metes and bounds description refers to the same basis at the same point, and that the bearing of every line is constant throughout its length.*

This presumption is exactly right if the original surveyor or deed author used the deflection method to compose his description. The presumption is equally valid for descriptions written from data obtained from a compass survey, provided that the area of the survey is small and not near the North or South Pole.

Seldom in modern surveys does a surveyor find it necessary to make astronomical observations. Where a new parcel is carved from an older subdivision, the bearings as given on the older map are assumed to be correct; new lines are deflected from



**Figure 11.10** Convergence of meridians.

the older lines, and bearings are computed. If a deed calls for a line and defines that line as having a definite bearing, succeeding lines are surveyed relative to the line called for.

In the eastern states, especially in the original colonies, use of the compass was prevalent before the development of the deflection method. Many early deeds failed to state whether their basis of bearing was magnetic or true. In some states, the presumption is that magnetic was used in older deeds; in others, true north is the presumption.

Often, where there is a marked difference between magnetic north and true north, the facts as observed on the ground will disclose which is correct. If the original surveyor used the deflection method, succeeding surveyors, in order to follow the footsteps of the original surveyor, must use the deflection method to reestablish deed lines. If a question exists between surveyors, the question may be answered only by application of rules of evidence.

Three conditions arising in descriptions lead to the following principle for determining the basis of deflected bearings:

**Principle 25.** (a) Where the bearing of a known line is given in a metes and bounds description, the bearing as given is assumed to be correct; successive courses are surveyed relative to the given bearing, whether or not the given bearing is astronomically correct. (b) Where a land description refers to a map and no basis of bearing is stated, it is implied that the map bearings are to be used, and all bearings in the

*description are referred to the same basis. (c) Where no basis of bearing is given or implied by a call for a map, true or magnetic bearings are to be used, depending on the presumption in the particular state.*

Referring to Figure 11.11, a description reading “Beginning at the NW corner of Pueblo Lot 1204, from which the northeast corner bears N 89°50′ E; thence S 40° E, 850 feet to the true point of beginning; thence, etc.,” implies that the angle to be turned from the north line of Pueblo Lot 1204 is 50° 10′, not 50°40′ as figured from the true astronomical bearings. Should the deed read “beginning at the northwest corner of Pueblo Lot 1204 as shown on the map of View Crest; thence S 40°E, 850 feet to the true point of beginning; thence, etc.,” Principle 2 applies. Where the View Crest map shows the bearing of the north line of Pueblo Lot 1204 to be N 89°50′ E, an angle of 50°10′ would be turned from said line. “Beginning at the northwest corner of Pueblo Lot 1204; thence S 40° E, 850 feet to the true point of beginning; thence, etc.” makes it necessary to use astronomical or magnetic bearings (depending on the state) where no bearings are given on the map of the Pueblo lands.

## Compass Bearings

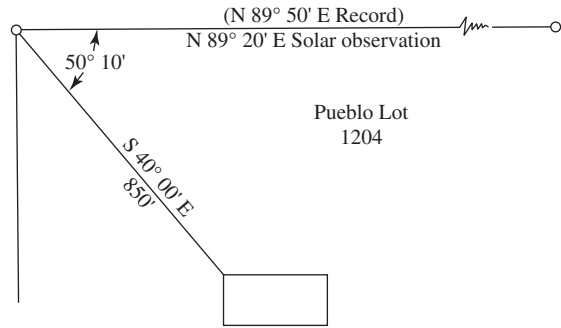
Early original surveys were conducted using staff compasses. This presumption is given credence by the written descriptions that usually refer to bearings to fractions of a degree; i.e., 43¼ or 62 or 21½. To retrace these early bearing references, the retracing surveyor must take into account the changes in magnetic declination that have occurred throughout the years.

The magnetic bearing of a line is subject to daily variations, annual variations, magnetic storm variations, and local attractions. Where an old description has magnetic bearings based on a compass survey, the problem today is to determine the difference between magnetic north as it existed at the date of the original deed and as it exists today. It is well known that two compasses may give substantially different bearings for the same line at the same time. Considering this, the most positive way to determine the difference between magnetic north as it existed at the time of the survey and as it exists today is according to the following principle.<sup>61</sup>

A closed traverse consisting of compass bearings does not have an error of closure.

**Principle 26.** *If an original line of a deed can be identified, and if it were described originally by a measured magnetic bearing, the difference between the original record bearing and the present measured magnetic bearing is the correction to apply to other record bearings of the same description.*

Original lines are not always identifiable. Lacking an original line to determine the difference between the present and the former declination, the following principle should be used.



**Figure 11.11** Pueblo lot 120.

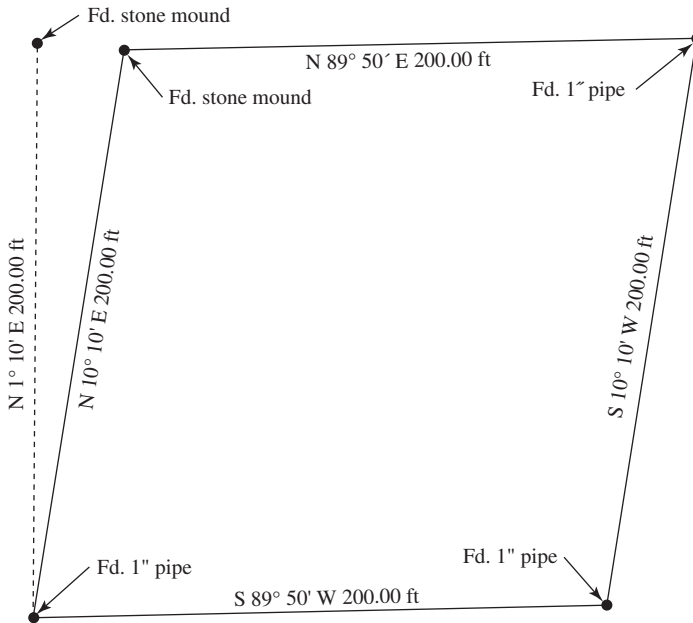
**Principle 27.** *If a line can be found in the vicinity whose magnetic bearing was determined reliably at the time of the deed, determine on that line the change in magnetic bearing from the date of the deed to the present time. Next, correct the bearings of the lines being surveyed by the amount of correction noted.*

In the absence of direct methods of determining declination variations with time, tables published by the government (*Magnetic Declinations in the United States in 1945*, Samuel A. Deel, U.S. Government Publication 664, Coast and Geodetic Survey) should be consulted. As an alternative, the website may be consulted for computations back to 1900. Prior to 1900, tables may be produced, but at this time the site is not able to automatically make the correction for values prior to 1900. The website is [www.ngdc.noaa.gov](http://www.ngdc.noaa.gov). The annual change of declination may be small, but over a period of time it can become significant. The change may accumulate for many years in one direction and then change to the opposite direction. Because of the many uncertainties in applying theoretical corrections, the following should be considered as a principle of last resort.

**Principle 28.** *In the absence of a direct method of determining declination changes between given dates and reliable local data relative to declination changes from a given date, apply the magnetic declination corrections as given in National Geodetic Survey tables or website.*

## 11.48 SUMMARY, INTERPRETATION OF THE PRINCIPLES, AND CONCLUSION

In court decisions, certain elements are presumed to be true until the contrary is proven; thus, if a letter is duly written, sealed, addressed, stamped, and placed in a mailbox, it is presumed to be delivered unless the contrary can be proven. The principles stated in this chapter can be considered in the same light; they are presumed to be correct until a contrary intent can be proven.



**Figure 11.12** Facts as found on the ground.

When interpreting conflicting terms within a deed, courts apply the rule or rules of construction that show most clearly the intent of the original parties to the deed as well as attempting to make the description valid. To state definitely that one construction always controls another is to err. The foregoing principles aid in interpreting what the courts declared to be the normal manner in which intent is expressed. To determine the intent of each term of a deed without considering each term in the light of all other terms is to err: The intent is to be gathered from all the terms of the deed, the circumstances under which the deed was written, and the facts on the ground. Many of the principles given here have force when only one other term is in conflict. Thus, a call for a monument is normally given precedence over calls for distance, angle, and area; however, where several other terms in the deed contradict the call for the monument, and where the acceptance of the monument voids all other considerations in the deed, the principle that monuments control is overcome by a contrary intent.

Figure 11.12 shows the facts found on the ground for a deed reading “. . . to a 1-inch iron pipe being the true point of beginning: thence, N 1°10' E, 200 feet to a stone mound; thence, N 89°50' E, 200 feet to a 1-inch iron pipe; thence, S 10°10' W, 200 feet to a 1-inch iron pipe; thence, S 89°50' W, 200 feet to the point of beginning.” Considering the first call alone, “N 1°10' E, 200 feet to a stone mound,” the stone mound found at that point would be considered as correct, whereas the stone mound found at N 10°10' E would be rejected in accordance with the rule stated in Section 5.21. However, the remainder of the deed shows a contrary intent. A mathematical closure and the finding of three other monuments in agreement with one another all

indicate that a typographical error caused the N 10°10' E to become N 1°10' E. Only by considering all the terms of the deed can a proper intent be arrived at.

The theory of majority probability (advanced by William C. Wattles in his book *Land Survey Descriptions*) whereby all factors are balanced, giving each its proper weighted value, forms a logical approach to a complex deed problem. Mathematical correctness, location of monuments, location and age of lines of possession, superiority of one call over another, previous survey records, the seniority of adjoining deeds, common customs of other surveyors, and all other factors must be examined, weighted, and balanced to arrive at a proper location.

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3. *Spainhour v. B. Aubrey Huffman & Associates, Ltd.*, 237 Va. 340, 377 S.E.2d 615 (Va. 1989).
4. *Bundy v. Morgan*, 45 Vt. 46 (1872).
5. *Cushing v. Monarch Timber Co.*, 75 Wash. 678 (1913).
6. *Clark v. Aldridge et al.*, 162 N.C. 326 (1913).
7. C.C.P. Sec. 1858 (1983).
8. *Ferris v. Coover*, 10 C 590 (1858).
9. *Cates v. Reynolds*, 228 S.W. 695, 143 Tenn. 667 (1920).
10. *Mills v. Catlin*, 22 Vt. 98 (1849).
11. *Miller v. Southland Life Insurance Co.*, 68 S.W.2d 558 (1934).
12. Ferris *supra* note 8.
13. *Vance v. Fore*, 24 Cal. 436 (1864).
14. *Morris v. Jody*, 216 Ky. 593 (1926).
15. *Hudson v. Irwin*, 50 Cal. 450 (1875).
16. *Swift Coal and Timber Co. v. Sturgill*, 188 Ky. 694 (1920).
17. *Bryant v. Struck*, 151 Ky. 97 (1912).